

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

-----X  
MONICA ARROYO HORNE

Date Filed:  
Index No.:

**SUMMONS**

Plaintiff,

-against-

CITY OF NEW YORK, KHANDAKAR ABDULLAH, Individually,

Plaintiff designates  
New York County  
as the place of trial  
based on Defendant.  
Principle  
Place of Business

Defendants’.

-----X  
**TO THE ABOVE-NAMED DEFENDANTS:**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your Answer, or if the complaint is not served with the summons, to serve a notice of appearance on Plaintiff’s attorney within twenty (20) days after service of this summons, exclusive of the day of service, (or within thirty (30) days after service is complete, if this summons is not personally delivered to you within the State of New York); and in case of your failure to answer, judgment will be taken against you by default for the relief demanded hereto.

Dated: New York, New York  
February 27, 2024

\_\_\_\_\_/s/\_\_\_\_\_  
John Scola  
Law Office of John A. Scola, PLLC  
Attorneys for Plaintiff Monica Arroyo Horne  
90 Broad Street, Suite 1023  
New York, New York 10004  
(917) 423-1445

**DEFENDANTS ADDRESS:**  
CITY OF NEW YORK  
Corporation Counsel of the City  
Of New York  
100 Church Street  
New York, NY 10007

KHANDAKAR ABDULLAH

30 Ralph Ave,

Brooklyn, NY 11221

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

-----X  
MONICA ARROYO HORNE,

Index No.

Plaintiff,

**VERIFIED AMENDED  
COMPLAINT**

-against-

THE CITY OF NEW YORK, KHANDAKAR  
ABDULLAH, Individually,

Defendants.

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**TO THE ABOVE-NAMED DEFENDANTS:**

The plaintiff, MONICA ARROYO HORNE, by his attorneys, the LAW OFFICE OF JOHN A. SCOLA, PLLC, as and for his verified amended complaint against Defendants' THE CITY OF NEW YORK, and KHANDAKAR ABDULLAH, Individually.

### **INTRODUCTION**

This is a civil rights action on behalf of the plaintiff MONICA ARROYO HORNE (hereinafter referred to as "plaintiff") to vindicate her rights for her denial of employment benefits with the New York City Police Department (hereinafter referred to as "NYPD" by Defendants THE CITY OF NEW YORK (hereinafter referred to as "CITY"), and Captain KHANDAKAR ABDULLAH, Individually (hereinafter referred to as "ABDULLAH") as a result of their unlawful conduct. More specifically, plaintiff seeks damages related to the deprivation of his rights secured by New York State Executive § 296, and New York City Local Law §8-101 et al. Plaintiff was denied employment benefits on the basis of her arrest history.

At all times herein, Plaintiff was a member of a protected class who performed her job duties in a satisfactory manner. Plaintiff was subjected to adverse actions as a result of and in retaliation for her membership in that protected classes as described below.

**PLAINTIFF**

1. Plaintiff MONICA ARROYO HORNE is a female citizen of the United States of America, over twenty-one (21) years of age, who is a police officer former employee by the New York City Police Department.

**DEFENDANTS'**

2. Defendant THE CITY OF NEW YORK is a municipal corporation organized and existing under and by virtue of the law of the State of New York.
3. Defendant, KHANDAKAR ABDULLAH, is a current Deputy Inspector in the New York City Police Department and is employed by the Defendant CITY OF NEW YORK
4. Defendant ABDULLAH, at all times herein and for purposes of New York City Human Rights law, was a supervisor of Plaintiff.

**FACTUAL ALLEGATIONS**

5. Plaintiff joined the New York City Police Department ("NYPD") as a Police Administrative Aide in a civilian role in 2000.
6. At all times herein, Plaintiff excelled in her position with the NYPD.
7. Plaintiff was initially assigned to the NYPD's Emergency Services Unit.
8. Plaintiff worked in that unit for three (3) or four (4) years.
9. In 2002 Plaintiff was transferred to the 90th Precinct.
10. In 2004, Plaintiff transferred to the 75th Precinct.
11. In 2009, Plaintiff was transferred to the 69<sup>th</sup> Precinct.
12. In 2012, Plaintiff was arrested after an incident with her mother.
13. Specifically, Plaintiff's mother, who had dementia and Alzheimer's became

agitated at a family barbeque where she began cursing and yelling.

14. Plaintiff's mother then abruptly left the gathering and returned with the police department.
15. Plaintiff was then arrested as a result of the incident.
16. Shortly after being arrested, the charges against Plaintiff were dismissed in their entirety and sealed.
17. As a result of the arrest, Plaintiff received internal disciplinary charges.
18. When the criminal case was dismissed, Plaintiff's internal disciplinary charges were dismissed as well.
19. The Defendants herein did not terminate Plaintiff's employment following her arrest and the dismissal of those charges.
20. The Defendants, under New York State law, could have terminated Plaintiff for this violation only if the **criminal conviction** had a direct relationship to her employment as an Aide with the NYPD or if her continued employment posed an "unreasonable risk" to the public.
21. The Defendants through their allowance of Plaintiff's continued employment have conceded that Plaintiff's position as an Aide and the allegations made against therein did not have a direct relationship with her employment with the NYPD nor unreasonable risk to the public.
22. At no time herein would there be a direct relationship between Plaintiff's arrest and Plaintiff's ability to perform her duties with NYPD.
23. At no time herein would there be a direct relationship between Plaintiff's arrest and Plaintiff's ability to perform the duties of an Aide in the NYPD.

24. At no time herein would there be an unreasonable risk to the public based on Plaintiff's arrest if Plaintiff continued to work as an Aide.
25. At no time herein would there be a direct relationship to Plaintiff's arrest and/or conduct to her position within the NYPD.
26. Plaintiff returned to work without incident.
27. Plaintiff, at all times herein, excelled in her positions with the NYPD.
28. In July 2021, Plaintiff asked for a merit increase in salary, a transfer to a lucrative specialized unit and more overtime to the Defendant ABDULLAH.
29. After Plaintiff requested the meeting, Plaintiff met with Defendant ABDULLAH in August 2021.
30. At the meeting, Defendant ABDULLAH asked Plaintiff "For the last 22 years, what have you done for us?"
31. Plaintiff was offended by the command as she had worked incredibly hard for the department.
32. Plaintiff, in this meeting, attempted to explain the amount of work she had performed over the last two (2) decades that warranted a raise.
33. Following, Plaintiff pitch to Defendant ABDULLAH, he responded by stating, you cannot be given these lucrative positions because she was subsequently arrested.
34. Plaintiff was completely disheartened by the Defendant ABDULLAH's explicit comments that she was being denied a raise.
35. Plaintiff's previous arrest and dismissal of those charges had no basis on Plaintiff's employment.

36. Plaintiff's previous arrest and dismissal of those charges did not pose a substantial risk to the public if Plaintiff received her promotion.
37. Plaintiff's previous arrest and dismissal of those charges did have a direct relationship to the position Plaintiff was applying.
38. Plaintiff, at all times herein, was a member of a protected class in 2002 when she was arrested.
39. That arrest was subsequently resolved in Plaintiff's favor.
40. Plaintiff requested a merit increase in her salary and an addition increase in working in a detail position with the Domestic Violence Unit in 2021.
41. These requests would have come with an increase of overtime of approximately \$20,000.
42. Plaintiff was denied this position due to her membership in the protected class of being previously arrested.
43. Similarly situated Aides with less experience than Plaintiff were regularly given merit increases in salary.
44. Plaintiff was denied this benefit due to her arrest history.
45. Plaintiff's arrest and conduct related thereto does not have a direct relationship to the employment sought by Plaintiff.
46. Plaintiff's arrest and conduct related thereto does not create a substantial risk to the public if Plaintiff were to obtain the promotion she sought.
47. Plaintiff subsequently learned that Defendant ABDULLAH was previously found guilty in an NYPD trial of driving while under the influence of alcohol.

48. Unlike Plaintiff, Defendant ABDULLAH was found “guilty” of committing criminal conduct and was not punished for his actions.
49. Contrarily, Plaintiff was forced to lose thousands of dollars in lost income due to her arrest history.
50. As a result of the arrest history discrimination by the Defendants herein, Plaintiff will continue to lose a minimum of \$10,000 per year in lost pension benefits for the rest of her life.
51. Similarly situated NYPD Aides were allowed to earn more money and given promotion due to them not having an arrest history.
52. These Aides include but are not limited to Smalls, Smith, Harnach, and Hung.
53. These Aides were allowed to work specialized assignments which allowed them to earn thousands of dollars more in income than Plaintiff per year.
54. Smalls, Smith, Harnach, and Hung are also allowed to earn overtime much more frequently than Plaintiff.
55. This is due to Plaintiff’s arrest history.
56. Plaintiff was similarly situated to these Aides in every material way but was denied employment benefits in the form of overtime, promotions, and income due to her arrest history.
57. After Defendant ABDULLAH let his sentiments clearly known, Plaintiff knew that she had no upward mobility within the NYPD due to her arrest, Plaintiff felt that she had no choice but to resign her employment with the NYPD.
58. On January 26, 2022, Plaintiff was forced to retire from the NYPD.



59. Plaintiff was forced to take a loss in benefits by leaving her and Plaintiff is not getting her full social security since he left the NYPD early.
60. Despite these financial losses, Plaintiff felt compelled to retire as her ability to ascend in employment had been eviscerated.
61. Plaintiff, if afforded the chance to progress within the NYPD, would have worked with the Defendants until the age of 63.
62. A reasonable person in the same situation as Plaintiff would have felt compelled to leave their employment with the defendants.
63. As a result of Plaintiff's constructive discharge, Plaintiff has suffered significant economic loss but had no choice but to leave her position with the NYPD or risk further damage to her health and mental well-being.
64. The Defendant CITY, having known about the discrimination and failed to take action, is strictly liable for the discrimination Plaintiff has been forced to endure.
65. Plaintiff suffered economic damages, pain and suffering and psychological injuries by reason of the discrimination, negligence, recklessness, carelessness and retaliation of New York City, its agents, servants, employees and/or licensees in the control, supervision, hiring and training of the individuals who discriminated against the Plaintiff.
66. That at all times herein the Defendant CITY OF NEW YORK, knew or should have known of the discriminatory actions taken toward Plaintiff yet failed to intervene to prevent these unlawful actions against Plaintiff.
67. That at all times herein the Defendant City OF NEW YORK failed to properly train police officers.

68. The Defendants herein, if properly trained, would not have taken the discriminatory and retaliatory actions towards Plaintiff.
69. The Defendants herein, upon information and belief, were not subjected to any discipline as a result of their unlawful discriminatory and retaliatory actions towards Plaintiff which has caused Plaintiff to suffer further unlawful acts.
70. The Defendants herein, if properly supervised, would not have taken the discriminatory and retaliatory actions towards Plaintiff.
71. As a result of this unlawful treatment and denial of lucrative positions Plaintiff has been damaged significantly and will continue to be damaged as a result of lost pension benefits until her death.
72. Plaintiff has been treated differently than similarly situated employees who had not been arrested in terms of assignments, overtime, specialized units, and other benefits that caused her significant economic damages and thwarted her ability to be promoted.
73. That at all times herein the Defendant CITY OF NEW YORK, knew or should have known of the discriminatory and retaliatory actions taken toward Plaintiff yet failed to intervene to prevent these unlawful actions against Plaintiff.
74. That at all times herein the Defendant City OF NEW YORK failed to properly supervise, train, and control their employees .
75. The Defendants herein, if properly trained, would not have taken the discriminatory and retaliatory actions towards Plaintiff.

76. The Defendants herein, upon information and belief, were not subjected to any discipline as a result of their unlawful discriminatory and retaliatory actions towards Plaintiff which has caused Plaintiff to suffer further unlawful acts.
77. The Defendants herein, if properly supervised, would not have taken the discriminatory and retaliatory actions towards Plaintiff.
78. Plaintiff at all times herein was fit for duty to work as a Police Administrator Aide for the Defendant CITY OF NEW YORK.
79. As a result of denial of employment opportunities by the Defendants herein, Plaintiff lost substantial income in promotional opportunities, overtime, salary, and pension benefits as a result of the unlawful actions of the Defendants herein.
80. Plaintiff alleges that the actions of the defendants herein caused her to suffer severe and pervasive emotional distress as a result of that hostile environment.
81. Plaintiff alleges that the defendants herein had actual knowledge of the discriminatory and retaliatory treatment of Plaintiff herein and failed to intercede to prevent the unlawful behavior.
82. Plaintiff suffered several adverse employment actions as a result of her arrest history.
83. Plaintiff believes that the adverse employment actions were a direct result of Plaintiff's arrest history but at the very least, arrest history played a factor in the adverse employment actions taken against her.
84. These adverse employment actions include but are no way limited to, improper discipline, punishment, transfers, highway therapy, disparate assignment of post, inaccurate performance evaluations, denial of overtime, denial of

specialized units and failure to promote.

85. Plaintiff has been subjected to a hostile work environment as a result of the severe and pervasive discriminatory and retaliatory conduct as described herein.

**COUNT I**  
**ARREST HISTORY/CONVICTION DISCRIMINATION**  
**IN VIOLATION OF NEW YORK**  
**STATE EXECUTIVE LAW § 296**

86. Plaintiff re-alleges and incorporates all paragraphs contained herein by reference to Count I of this complaint.
87. Plaintiff alleges that New York State Executive Law §296, prohibits discrimination, harassment, and disparate treatment on the basis of arrest history/conviction history in employment.
88. Plaintiff performed his job duties satisfactorily which is reflected in Plaintiff's stellar performance evaluations. Nevertheless, Defendant denied Plaintiff benefits of employment, including all favorable conditions and emoluments thereof because of Plaintiff's arrest history/conviction history, created a hostile work environment by the conduct of Defendants' CITY OF NEW YORK, and KHANDAKAR ABDULLAH, Individually and those within its employ and without any non-discriminatory basis thereof. The wrongful conduct was condoned by the Defendant CITY OF NEW YORK.
89. Defendant's actions were taken under circumstances giving rise to an inference of discrimination.
90. The direct and proximate cause of Defendant's recklessness and negligence, Plaintiff was denied a promotion, suffered lost past and future wages, lost other valuable benefits and emoluments of employment, hurt his credit rating, lost

career, and business opportunities, suffered severe damage to his good name and reputation, was denied overtime, and endured severe emotional pain and trauma, all to his detriment in an amount to be determined at trial.

91. Plaintiff alleges Defendants' THE CITY OF NEW YORK, and KHANDAKAR ABDULLAH, Individually, engaged in various unlawful employment actions against Plaintiff based on his arrest history/conviction history.
92. Plaintiff alleges that as a direct and proximate result of the unlawful employment practices of Defendants' THE CITY OF NEW YORK, and KHANDAKAR ABDULLAH, Individually, Plaintiff incurred significant legal costs, back pay, front pay, compensatory damages, attorneys' fees, emotional distress, and damage to his personal and professional reputation in an amount to be determined at trial.

**COUNT II**  
**ARREST HISTORY/CONVICTION DISCRIMINATION**  
**IN VIOLATION OF NEW YORK CITY**  
**ADMINISTRATIVE CODE § 8-107**

93. Plaintiff re-alleges and incorporates all paragraphs contained herein by reference to Count IV of this complaint.
94. Plaintiff alleges that New York City Administrative Code § 8-107, makes it unlawful to deny employment on the basis of his arrest history/conviction history.
95. Plaintiff performed his job duties satisfactorily which is reflected in Plaintiffs stellar performance evaluations. Nevertheless, Defendant denied Plaintiff benefits of employment, including all favorable conditions and emoluments thereof because of Plaintiff's arrest history/conviction history, created a hostile work environment by the conduct of Defendants' THE CITY OF NEW YORK,

and KHANDAKAR ABDULLAH, Individually. The wrongful conduct was condoned by the Defendant CITY OF NEW YORK.

96. Defendant's actions were taken under circumstances giving rise to an inference of discrimination.
97. The direct and proximate cause of Defendant's recklessness and negligence, Plaintiff was denied a promotion, suffered lost past and future wages, lost other valuable benefits and emoluments of employment, hurt his credit rating, lost career, and business opportunities, suffered severe damage to his good name and reputation, was denied overtime, and endured severe emotional pain and trauma, all to his detriment in an amount to be determined at trial.
98. Plaintiff alleges Defendants' CITY OF NEW YORK, and KHANDAKAR ABDULLAH, Individually engaged in various unlawful employment actions against Plaintiff based on his arrest history/conviction history.
99. Plaintiff alleges that as a direct and proximate result of the unlawful employment practices of Defendants' THE CITY OF NEW YORK, and KHANDAKAR ABDULLAH, Individually, Plaintiff incurred significant legal costs, back pay, front pay, compensatory damages, punitive damages, attorneys' fees, emotional distress, and damage to his personal and professional reputation in an amount to be determined at trial.

**COUNT III**  
**CRIMINAL ARREST DISCRIMINATION**  
**STRICT LIABILITY IN VIOLATION OF**  
**NEW YORK CITY ADMINISTRATIVE CODE § 8-107(13)(b)**

100. Plaintiff re-alleges and incorporates all paragraphs contained herein by reference to Count VII of this complaint.

101. Plaintiff alleges that New York City Administrative Code § 8-107 (13) (b), makes a Defendant strictly liable for the discriminatory acts of managers and supervisors against a subordinate employee, such as the Plaintiff herein.
102. Plaintiff was subjected to repeated criminal arrest discrimination following the lawful complaints made by Plaintiff.
103. The Defendant was aware of the actions of managers and supervisors, including but failed to take corrective remedial action which forced Plaintiff to be subjected to future discrimination.
104. The Defendant failed to exercise reasonable diligence to prevent such discriminatory conduct.
105. Plaintiff performed his job duties satisfactorily which is reflected in Plaintiffs stellar performance evaluations. Nevertheless, Defendant denied Plaintiff benefits of employment, including all favorable conditions and emoluments thereof because of Plaintiff's criminal arrest history, created a hostile work environment by the conduct of Defendants' CITY OF NEW YORK, and KHANDAKAR ABDULLAH, Individually and without any non-discriminatory basis thereof. The wrongful conduct was condoned by the Defendant CITY OF NEW YORK.
106. Defendant's actions were taken under circumstances giving rise to an inference of discrimination.
107. The direct and proximate cause of Defendant's recklessness and negligence, Plaintiff was denied a promotion, suffered lost past and future wages, lost other valuable benefits and emoluments of employment, hurt his credit rating, lost

career, and business opportunities, suffered severe damage to his good name and reputation, was denied overtime, and endured severe emotional pain and trauma, all to his detriment in an amount to be determined at trial.

108. Plaintiff alleges Defendants' CITY OF NEW YORK, and KHANDAKAR ABDULLAH, Individually engaged in various unlawful employment actions against Plaintiff based on his criminal arrest history.

109. Plaintiff alleges that as a direct and proximate result of the unlawful employment practices of Defendants' CITY OF NEW YORK, and KHANDAKAR ABDULLAH, Individually Plaintiff incurred significant legal costs, back pay, front pay, compensatory damages, punitive damages, attorneys' fees, emotional distress, and damage to his personal and professional reputation in an amount to be determined at trial.

110. As a result of Defendant's willful actions, they are strictly liable to Plaintiff for their actions.

### **JURY TRIAL**

111. Plaintiff demands a trial by jury of all issues in this action that are so triable.

### **PRAYER FOR RELIEF**

WHEREFORE, Plaintiff respectfully request that the Court:

- a. Award compensatory damages for the back pay, front pay, pain, suffering, emotional distress, loss of dignity, humiliation, and damages to reputation and livelihood endured by Plaintiff and all other damages afforded to Plaintiff by statute or otherwise in an amount to be determined at trial.
- b. Award Plaintiff punitive damages in an amount to be determined at trial New



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**VERIFICATION**

STATE OF NEW YORK     )  
COUNTY OF NEW YORK    )

I, the undersigned, an attorney duly admitted to practice law in the State of New York, under penalties of perjury do affirm.

That I am the attorney of record for the plaintiff in the within matter and make this affirmation in accordance with CPLR 3020. I have read the within VERIFIED COMPLAINT and know the contents thereof to be true to your affirm ant's own knowledge, with the exception of those matters therein stated to be alleged upon information and belief. Your affirmant bases his belief regarding those matters upon the contents of the file and conversation with witnesses and the claimant.

This verification is made by your affirmant and not by the claimant for the following reason; The claimants resides in a different County than where your affirmant maintains an office.

Dated: New York, New York  
February 27, 2024

\_\_\_\_\_/s/\_\_\_\_\_  
JOHN SCOLA